MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: April 14, 2025

Parties

This Agreement is between:

Sigane Digital Ltd.
Registered in England and Wales
71 Queen Victoria Street, London EC4V 4AY, United Kingdom
("Sigane")

and

ABC GmbH
Registered in the Federal Republic of Germany
ABC-strasse 42, 80339 Munich, Germany
("ABC")

Together, the "Parties." Individually, a "Party."

Background

Sigane and ABC are exploring a potential collaboration involving cloud-based analytics and digital platform integration ("Project Scope"). To move forward, both sides need to share sensitive information. This agreement sets out the rules for how that information is handled.

A. What We Mean by Confidential Information

"Confidential Information" means any non-public information shared by one Party ("Discloser") with the other ("Receiver") in connection with the Project Scope. This includes — but isn't limited to — product roadmaps, source code, APIs, architecture documents, user data insights, pricing models, business strategies, and partnership details.

It covers information shared in any format: written, verbal, electronic, or visual — whether or not it's labelled "confidential."

B. What's Not Covered

Confidential Information does not include anything that:

1. Is already publicly known at the time of disclosure, or becomes public later — as long as the Receiver didn't cause that;
2. The Receiver already had before it was shared, with documentation to prove it;
3. The Receiver develops independently, without using or referencing the Discloser's information; or
4. Comes to the Receiver legitimately from a third party with no confidentiality strings attached.

C. How We Handle It

Each Party agrees to:

- Use the other's Confidential Information **only** for the Project Scope — nothing else;
- Keep it secure using the same level of protection it applies to its own sensitive information (and at minimum, reasonable care);
- Not share it with anyone outside the organisation unless this agreement says otherwise; and
- Not reverse-engineer, decompile, or disassemble any Confidential Information provided in object code or compiled form.

D. Who Can See It

The Receiver may share Confidential Information internally with team members who genuinely need access to do their work on the Project Scope, provided those individuals are bound by confidentiality terms at least as protective as these.

Sharing with external contractors, freelancers, or sub-processors requires the Discloser's prior written approval. If approved, the Receiver is responsible for ensuring those third parties comply with equivalent obligations.

E. Legal or Regulatory Requests

If a Party is required by law, regulation, or court order to disclose Confidential Information, it will:

- Let the other Party know as soon as reasonably possible (unless legally prohibited from doing so);
- Work with the other Party to narrow the scope of what's disclosed; and
- Only disclose the minimum amount required.

F. Ownership and IP

Let's be clear: sharing information doesn't transfer ownership. All Confidential Information remains the property of the Discloser.

Nothing in this agreement grants any licence, implied or otherwise, to patents, copyrights, trademarks, trade secrets, or any other intellectual property of either Party.

G. Giving It Back

When the Project Scope wraps up — or if either Party asks in writing — the Receiver will promptly return or delete all Confidential Information in its possession, including copies, notes, and summaries.

Exception: the Receiver may keep one archived copy if required by law or internal compliance policy, but it stays confidential and subject to this agreement.

H. No Promises on Accuracy

All Confidential Information is shared on an "as-is" basis. Neither Party makes any guarantees about its accuracy, completeness, or suitability for any particular use. Neither Party is liable for decisions the other makes based on the information shared.

I. What Happens If Something Goes Wrong

Both Parties acknowledge that a breach of this agreement could cause real harm that money alone can't fix. In that case, the affected Party may seek urgent injunctive or equitable relief from any court with jurisdiction, without needing to post a bond.

This is in addition to — not instead of — any other remedies available at law.

J. How Long This Lasts

This agreement runs for **two (2) years** from the Effective Date. Either Party can end it early with **thirty (30) days' written notice**.

The confidentiality obligations survive termination and continue for **three (3) years** from the date of each disclosure.

K. Governing Law

This agreement is governed by the laws of **England and Wales**, without regard to conflict of law rules.

L. Disputes

The Parties agree to first attempt to resolve any dispute informally through good-faith negotiation between senior representatives within thirty (30) days of written notice of the dispute.

If that doesn't work, the dispute will be referred to mediation under the Centre for Effective Dispute Resolution (CEDR) Model Mediation Procedure in London.

If mediation fails within sixty (60) days, either Party may bring proceedings before the courts of England and Wales, which shall have non-exclusive jurisdiction.

M. The Fine Print

Entire Agreement. This is the whole deal on this topic. It replaces any previous conversations, emails, or agreements about confidentiality between the Parties.

Changes. Any changes need to be in writing and signed by both Parties.

Assignment. Neither Party may assign this agreement without the other's written consent, except in the case of a merger, acquisition, or corporate restructuring.

Severability. If any part of this agreement turns out to be unenforceable, the rest still stands.

No Waiver. Not enforcing a provision once doesn't mean waiving the right to enforce it later.

Agreed and accepted:

Sigane Digital AG	**ABC GmbH**
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____